

24NWCV03566 24NWCV03566

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C08%2F04%2F2026

Source SHA-256: e85dab1496d027cc5d33059fce9085355634ff08bf22f984adb86077b964ef20

Case Number: 24NWCV03566 Hearing Date: August 4, 2026 Dept: L

I.

Defendant's Motion for Request for
Admissions, Propounded on Plaintiff Miguel Castillo, be Deemed Admitted
(brought as an individual) is DENIED.

II.

Defendant's Motion for Request for
Admissions, Propounded on Plaintiff Elizabeth Castillo, be Deemed Admitted
(brought as an individual) is DENIED.

III.

Defendant's Motion for Request for
Admissions, Propounded on Plaintiff Miguel Castillo, be Deemed Admitted
(brought as Trustee) is DENIED.

IV.

Defendant's Motion for Request for
Admissions, Propounded on Plaintiff Elizabeth Castillo, be Deemed Admitted
(brought as Trustee) is DENIED.

V.

Defendant is awarded \$750.00 in sanctions
in total for all Motions, payable within 60 days.

Defendant to give notice.

Background

This is a tenants' rights action.

On October 10, 2024, Plaintiff Miguel Castillo and Elizabeth Castillo ("Plaintiffs") filed this action against Defendant Jacob Ibarra, individually and Trustee of the Ibarra Living Trust, ("Defendant"), and Does 1 to 100.

On November 10, 2025, Plaintiffs' prior counsel was relieved as counsel. (See 11/10/25 Order.)

On April 18, 2026, Defendant served Requests for Admissions on Plaintiffs. (Fuentes Decls., ¶¶ 4-5, Exhs. 4-5.)

On June 10, 2026, Attorney Dalton B. Phillips was substituted as counsel for Plaintiffs.

The following matters are on calendar:

- Defendant's

Motion for Request for Admissions, Propounded on Plaintiff Miguel Castillo, be Deemed Admitted (brought as an individual)

-

Defendant's Motion for Request for Admissions, Propounded on Plaintiff Elizabeth Castillo, be Deemed Admitted (brought as an individual)

-

Defendant's Motion for Request for Admissions, Propounded on Plaintiff Miguel Castillo, be Deemed Admitted (brought as Trustee)

- Defendant's

Motion for Request for Admissions, Propounded on Plaintiff Elizabeth Castillo, be Deemed Admitted (brought as Trustee)

The Court will address the Motions concurrently as they are substantially similar.

Legal Standard

Where there has been no timely response to a request for admission under Code of Civil Procedure section 2033.010, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code of Civ. Proc., § 2033.280, subd. (b).) The court “shall” grant a motion to deem admitted requests for admissions, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code of Civ. Proc., § 2033.280, subd. (c).) 22

Discussion

On April 18, 2026, Defendant served Requests for Admissions on Plaintiffs via mail and e-mail, as well as by priority mail on April 20, 2026. (Fuentes Decls., ¶¶ 4-5, Exhs. 4-5.) Plaintiffs failed to respond by the deadline of May 20, 2026. (Fuentes Decls., ¶ 8.) Defendant asserts that he granted Plaintiffs an extension to respond by June 3, 2026 via a meet and confer email. (Fuentes Decls., ¶¶ 8-9, Exh. 3.) Plaintiffs later retained current counsel, Mr. Phillips. Mr. Phillips called Defense counsel requesting an extension to respond, and Defense counsel orally granted an extension for Plaintiffs to respond by June 30, 2026. (Fuentes Decls., ¶ 12.) Defendants note that, in open court on June 16, 2026, Mr. Phillips agreed to comply with the June 30, 2026 extension. (Fuentes Decls., ¶ 13.) However, Plaintiffs did not comply with the deadline. (Ibid.)

Defendant requests \$4,500.00 in sanctions in total for all Motions.

In opposition, Plaintiffs note that current counsel was retained on June 1, 2026. (Phillips Decls., ¶ 2.) On June 2, 2026, Plaintiffs’ counsel called Defense counsel requesting a 30-day extension from the June 3, 2026 deadline previously offered. (Phillips Decls., ¶ 5.) After a lengthy discussion, Defense counsel agreed to a 30-day extension—however, Defense counsel did not state that the extension expired June 30, and Mr. Phillips did not request or agree to a June 30 deadline. (Phillips Decls., ¶ 7.) Plaintiffs’ counsel thus believed that the operative deadline was July 2, 2026, 30 days after the June 2, 2026 call.

On July 2, 2026, Plaintiffs

served substantive responses, without objections, to the four subject discovery requests. (Phillips Decl., ¶ 9, Ex. B.) Plaintiffs argue that Defendant filed these Motions approximately one hour after the responses were served. (Phillips Decl., ¶ 11.) After meeting and conferring, Defense counsel refused to withdraw the Motions. (Phillips Decl., ¶¶ 12-13.) In an abundance of caution, Plaintiffs re-served verified, objection-free, substantive responses on July 22, 2026. (Phillips Decl., ¶ 14, Exh. C.)

Plaintiffs thus argue that the Motions should be denied where Plaintiffs provided substantially compliant responses to the subject discovery requests.

In reply, Defense counsel claims that he never agreed to a July 2 or July 3 deadline. (Fuentes Reply Decs., ¶ 3.) Defense counsel asserts that the burden is on Plaintiffs to demonstrate that an extension agreement existed, noting that Code of Civil Procedure section 2033.260 requires that the responding party give notice of any such agreement. Defendant argues that Plaintiffs' July 2, 2026 responses were not substantially compliant because they were not verified. Further, on that date, Plaintiffs only responded to Defendant's Requests for Admissions propounded as Jacob Ibarra as an individual, not as a Trustee. (See Fuentes Reply Decs., ¶ 7, Exh. 1.) Defendant asserts that Plaintiffs failed to serve verified responses until July 22, 2026, 20 days after these Motions were filed. Thus, sanctions are warranted.

The court shall grant a motion to deem requests for admissions, admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., 2033.280, subd. (c).) "It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Ibid.)

The Court finds that the parties' disagreement regarding the operative deadline

for Plaintiffs to provide responses is not dispositive. The bottom line is that Plaintiffs' July 22, 2026 responses to all subject discovery requests were substantially compliant with

the Code—i.e., the responses were substantive and verified.

The Court notes that Plaintiffs'

July 2, 2026 responses were not in "substantial compliance" because they were unverified. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 [finding that unverified responses to requests for admissions are not in "substantial compliance" with the Code].) Further, those responses only responded to two of the four discovery requests. (See *Fuentes Reply Decs.*, ¶ 7, Exh. 1.) Thus, even if the operative deadline was July 2, 2026, the responses would not defeat the mandatory sanctions associated with the Motions.

Because Plaintiffs have provided substantially compliant, albeit untimely, responses before the hearing on these Motions, the Motions are DENIED as MOOT.

Sanctions are "mandatory" even if untimely responses are provided. (Code Civ. Proc., 2033.280, subd. (c); see also Cal. Rules of Court, rule 3.1348

["The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though. . .the requested discovery was provided to the moving party after the motion was filed.]")

Defendant is awarded \$750.00 in sanctions in total for all Motions, payable within 60 days.